

		or modified under the next section an implied warranty that the goods shall be fit for such purpose.” As stated above, the court in <i>Ballesteros, supra</i>, held that “implied warranties arise under the Commercial Code only for a merchant or seller in privity with the buyer.” (<i>Ballesteros, supra</i>, 109 Cal.App.5th at 1217). Plaintiff concedes there is no privity, but the only cases Plaintiff relies on in support of his argument that privity is not required are <i>Ballesteros</i> and <i>Davis</i>, which support the opposite conclusion. Accordingly, the demurrer is sustained with leave to amend. <u>1st COA – Violation of Magnuson-Moss Warranty Act (MMWA)</u> Defendant demurs to this cause of action on the basis that Plaintiff has not stated a viable state law claim. As the court held in <i>Clemens v. DaimlerChrysler Corp.</i> (9th Cir. 2008) 534 F.3d 1017, 1022: “the claims under the Magnuson–Moss Act stand or fall with his express and implied warranty claims under state law.” Plaintiff concedes Defendant’s argument that MMWA claims “stand or fall” with the state-based claim. (Opp., 3:3). Plaintiff argues that because the Commercial Code claims are viable, so too is the MMWA claim. However, because Plaintiff’s other causes of action under the Commercial Code fail, the court sustains the demurrer as to this cause of action with leave to amend as well. Should Plaintiff wish to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it within 30 days of service of notice of ruling. Defendant shall give notice.
3	Church vs. Rancho Madrina Community Association	TENTATIVE RULING: <u>Petition to Confirm Arbitration Award</u> Petitioner Rancho Madrina Community Association moves to confirm the arbitration award made on October 16, 2023. For the following reasons, the petition is GRANTED.

A petition to confirm an arbitration award must satisfy the requirements set forth in California Code of Civil Procedure § 1285.4. The petition must set forth or have attached: (a) the substance of or a copy of the agreement to arbitrate (unless the petitioner denies its existence); (b) the names of the arbitrators; and (c) a copy of the award and the written opinion of the arbitrators, if any. “A petition to confirm need only set forth (1) the names of the arbitrators, (2) the arbitration agreement (by description or attached copy), and (3) the award and written opinion of the arbitrators (by description or attached copy).” (*Valencia v. Mendoza* (2024) 103 Cal.App.5th 427, 442.)

The petition must be served and filed within four years after the date of service of a signed copy of the award on the petitioner. (Code Civ. Proc. § 1288.) Any party to an arbitration in which an award has been made may petition the court to confirm the award. (Code Civ. Proc. § 1285.)

Once a petition meeting the statutory requirements is properly served and filed, Section 1286 mandates that “the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding.” (Code Civ. Proc. § 1286.) This creates a presumption in favor of confirmation. “Once a petition to confirm that meets the statutory requirements has been served, ‘the burden is on the party attacking the award to affirmatively establish the existence of error.’” (*Valencia, supra*, 103 Cal.App.5th at 442.)

The trial court has only four permissible courses of action when a petition to confirm is filed: confirm the award, correct and confirm it, vacate it, or dismiss the proceeding. (*Soni v. SimpleLayers, Inc.* (2019) 42 Cal.App.5th 1071; *IHM Productions, Inc. v. Starline Tours of Hollywood, Inc.* (2018) 21 Cal.App.5th 1058.)

The grounds for vacating an award are limited to those enumerated in section 1286.2, such as when arbitrators exceeded their powers and the award cannot be corrected without affecting the merits. Similarly, correction is permitted only for specific defects such as evident miscalculation, matters not submitted to arbitration, or imperfections in form not affecting the merits. (Code Civ. Proc. § 1286.6.)

Once an award is confirmed, judgment shall be entered in conformity with the award, which has the same force and effect as a judgment in a civil action and may be enforced accordingly. (Code Civ. Proc. § 1287.4.)

Respondent Chad Church opposes the petition and asks the Court to vacate the award because the arbitrator exceeded his authority in multiple ways. However, Respondent’s request to vacate the award is untimely.

A party may seek to vacate an award either by filing a petition to vacate or requesting vacatur in response to a petition to confirm the award. (Code Civ. Proc. § 1288.2.) Such petition must be filed and served “not later than 100 days after the date of the service of a signed copy of the award on the petitioner.” (Code Civ. Proc. § 1288.) In the event a request to vacate is made in response to the petition to confirm, the response must be timely under the 100-day deadline and it also must be filed within 10 days after service of the petition to confirm. (*Law Finance Group, LLC v. Key* (2023) 14 Cal.5th 932, 946; Code Civ. Proc. § 1288.2; § 1290.6; see also *Eternity Investments, Inc. v. Brown* (2007) 151 Cal.App.4th 739, 746 [holding that when a party does “not serve or file a petition or response to correct or vacate the award before the 100–day period expire[s],” and the opposing side files a petition to confirm more than 100 days after service of the award, it is then “too late ... to seek correction or vacatur.”].)

“[W]hen a filing both (1) responds to a petition to confirm, and (2) requests that the arbitration award be vacated, both deadlines apply: (1) Absent a written agreement or court order, the response must be filed within 10 days after service of the petition to confirm and (2) in any event, no later than 100 days after service of the award.” (*Law Finance Group, supra*, 14 Cal.5th at 946–947.)

Respondent’s filing does not meet either deadline.

First, Respondent’s request to vacate the arbitration award was not filed and served within 100 days from service of the arbitration award. (Code Civ. Proc. § 1288.) The arbitration award was served on October 17, 2023. (ROA 403 at ¶ 9.) Respondent filed his opposition seeking to vacate the arbitration award on June 10, 2026 – over two and a half years later.

Second, Respondent’s request to vacate the arbitration award was not filed within 10 days after service of the petition to confirm the award. The petition to confirm the award was served on March 18, 2026. (ROA 403.) Again, Respondent filed his opposition seeking to vacate the arbitration award on June 10, 2026 – 84 days later. Respondent’s request to vacate the arbitration award is untimely.